

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

Ajay Nair vs State of Kerala ... on 7 March, 2023
2024 Cri LJ 3448, (2024) DLT (CrI) 617
Bench: Hima Kohli, J.

JUDGMENT

Hima Kohli, J.

1. The petitioner seeks regular bail under Section 483 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023 in FIR No. 71/2024 registered under Sections 21, 29 and 61 of the Narcotic Drugs and Psychotropic Substances Act (NDPS Act), 1985 at Special Cell Police Station, Kerala.
2. The prosecution case is that 350 grams of contraband was recovered from a co-accused on 26-08-2022. The petitioner stands implicated solely on disclosure statements and alleged telephonic contact under Section 29 NDPS Act.
3. Learned counsel Luthra for the petitioner submitted that no recovery was effected from the conscious possession of the petitioner, and custodial statements are inadmissible per 1994 Supp (1) SCC 92 in the case of Balbir Singh v. State.
4. It was further urged that the search violated the mandatory safeguards of Section 50 of the NDPS Act, and the recovered quantity being intermediate, the embargo under Section 37 NDPS Act does not operate.
5. Learned APP Ms. Joshi opposed, placing reliance on Call Detail Records showing contact between the petitioner and the co-accused, and on the panchanama drawn at the time of recovery.
6. Considering that investigation is complete, the charge sheet stands filed, and no contraband was recovered from the petitioner's conscious possession, the petitioner satisfies the parameters for bail under Section 483 BNSS, 2023.
7. Application allowed. Petitioner admitted to bail on furnishing personal bond of Rs. 100,000/- with two sureties.

Hima Kohli.